



## POLICE DEPARTMENT

July 3, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Mark Calandra  
Tax Registry No. 922051  
40 Precinct  
Disciplinary Case No. 2011-6384  
-----

The above-named member of the Department appeared before me on June 5, 2013, charged with the following:

1. Said Police Officer Mark Calandra, while assigned to the 40<sup>th</sup> Precinct, on or about and between May 17, 2010 and July 1, 2010, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer, on two (2) occasions did request the assistance of other members of the service to prevent the processing and adjudication of two (2) summonses issued to two (2) individuals.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT  
GENERAL REGULATIONS

The Department was represented by Vivian Joo, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

### DECISION

Respondent is found Guilty in part.

SUMMARY OF EVIDENCE PRESENTEDIntroduction

The principal evidence in this case involves telephone conversations and text messages intercepted and recorded pursuant to a wiretap investigation. On agreement of the parties the audio recordings and related transcripts were received into evidence. All of the digital audio and text message files are on a single compact disk (Department's Exhibit [DX] 1). The various transcripts were also received in evidence (DX 2 through 14)

The Department's Case

The Department called Sergeant Bryan Brooks.

Sergeant Bryan Brooks

Brooks is a 15-year member of the Department who has been assigned to Internal Affairs Bureau (IAB) Group 21 since May of 2007. Brooks is familiar with a wiretap investigation conducted by the Bronx District Attorney's office from January to December 2010. He participated in the investigation of members of the service who were heard on the wiretaps. He questioned some of these members of service but had no involvement in the criminal cases, dealing only with administrative matters.

During his work on this investigation Brooks listened to over a thousand wiretap conversations. He participated in the interviews of about 800 officers and conducted 300 to 350 on his own. As to the interviews he conducted Brooks said there was a standard format. They would first get background information such as rank, command and length of service. He said they would ask what the definition of taking care of a summons was

and then they would question the member about the conversations that were overheard on the wiretap.

Brooks indicated that he became familiar with the structure of how summonses were taken care of and he stated that it basically all went through the delegates. The purpose of this was to ease up on confusion, he said.

He said that during the investigation he would receive a folder with a flow chart indicating how the calls were received, who made the request, and if they were outsourced to someone to take care of them. He further indicated that at times he had the final outcome as well. Inside the folder there were also transcripts of the calls and the audio recording as well.

Brooks acknowledged that he interviewed Respondent as part of that investigation. The interview was conducted at 315 Hudson Street by himself and Detective Jefferies. The interview was recorded and the conversation was transcribed. Brooks had reviewed the transcript against the audio tape and made handwritten corrections. A tape recording of the interview and transcript were received in evidence (DX 15A and B).

Describing what happened at the interview Brooks said that Respondent at first denied recalling ever making or receiving a request to fix a summons. Brooks said he questioned Respondent about two specific incidents. With regard to an incident that occurred between May 17 and May 20, 2010, Brooks said that the person, "Donnie" referred to in the conversation is Police Officer Donald Pirone who was the 44 Precinct delegate.

On questioning by the Court it was ascertained that conversations were between Police Officer Brian McGuckin who was the delegate from the 40 Precinct and Police Officer Gary Martin who was the delegate from the 44 Precinct. It was explained that Pirone was merely mentioned during the conversation.

Brooks explained that in the conversation McGuckin asked Martin to take care of a summons that had been issued to a Person A. He explained that Martin was on vacation but said he would have someone else take care of it and Martin reached out to his co-delegate Pirone who had a better relationship with the issuing officer, Driscoll.

In the conversation they mentioned that the court date for the summons was May 20, 2010. Brooks said that he learned that the summons was dismissed in court.

Brooks also testified that during the investigation there were times when conversations regarding the fixing of summonses were not captured on the wiretap. As an example he noted that sometimes face-to-face, that is in-person conversations occurred that were not on the wiretap.

Brooks noted that at first Respondent had no recollection of the incident but when Person A's name was brought up Respondent acknowledged that Person A was his stepson. Brooks further noted that Respondent had no specific recollection of making the request. He said it could have happened but he had no recollection that it did happen.

Brooks also noted that Respondent had said that if he needed something he would reach out to McGuckin. Brooks stated that at the time there were two other delegates in that precinct, Bencosme and Rodriquez.

On cross-examination Brooks agreed that doing interviews on this investigation was a full time job for a long period of time. He said that he conducted four to six



interviews in a day. He agreed that two attorneys were there all the time, Savino and Stance and he got to know them. He agreed that he tried to keep to the standard script. He agreed that one of the questions was whether the officer had fixed a ticket in the past 18 months. The reason for that period of time was the statute of limitations.

Brooks did not agree that he was not interested in events that happened prior to the 18-month period because he noted it might establish a course of conduct.

Brooks agreed that at first Respondent had no recollection of fixing any tickets in that period of time. He agreed that he spoke to the attorneys in advance of each interview. Brooks asserted that not everyone interviewed had actually been heard on the wiretap, sometimes it was just that their name was mentioned. Brooks agreed that this would be a basis for calling someone in for an interview.

Brooks acknowledged that initially during the investigation they would tell the attorney how many conversations they had on tape but as time went on they just followed the script. He also agreed that the conversations were not random and that there was a reason people were brought in for an interview.

Brooks agreed that at the beginning Respondent did not recall fixing any summonses but when the name of Person B came up Respondent admitted to it. He agreed that Respondent had said that Person B had been his roommate. Brooks agreed that going into the interview he had evidence that Respondent had reached out to McGuckin regarding the Person B summons.

Brooks agreed that Respondent never remembered having anything to do with the Person A summons. Brooks agreed that when he mentioned Person A's name Respondent asked about his date of birth because the boy's father had the same name.

Brooks agreed that during the interviews when an officer said he did not remember he would have the audio recording ready and would play it for the officer. Brooks indicated that in the beginning they would tell them how many summonses but as time went on he said there was no debate about the numbers. Brooks agreed that as time went on word had gotten out and people did not remember until the tape was played for them.

Brooks agreed that he did not have Respondent on tape in any conversation discussing the Person A summons. Brooks agreed that he had said some conversations were missing because they occurred in person and it could have happened in this case because Respondent and McGuckin worked in the same precinct. He agreed that the conversation regarding the Person B summons occurred on the phone.

Brooks denied that he ever tried to bluff Respondent but noted that he did not recall the specific words he used. He then reviewed the transcript of the interview and agreed that it sounded like he had a call between Respondent and McGuckin but he denied that he was trying to bluff Respondent.

Brooks agreed there was no such phone call. Brooks however denied that he was trying to make Respondent think he had that call on tape. Brooks acknowledged that the transcript indicated that he had said, "You made a call to Brian McGuckin in regards to this summons. Okay?"

Brooks then agreed that at the time he either believed that there was a recorded call between Respondent and McGuckin or that he had misspoken.

Brooks agreed that Pirone, Myers and the other delegates from the 44 Precinct were interviewed. He said Driscoll was also interviewed. He did not recall if he



conducted those interviews but acknowledged that most officers did not recall the name of people involved in the summonses. While he did not know the specifics of the Driscoll interview, based on his experience officers in that position who said they went to traffic court and could not remember the summons acknowledged that they threw the case.

Brooks agreed that McGuckin was not interviewed because he is under indictment in Bronx County and that the district attorney requested that he not be interviewed.

Brooks agreed that he did not interview Person A and that he does not know if Person A has a personal relationship with McGuckin. Brooks agreed that in the conversation between McGuckin and Martin mention was made of the fact that the family had just gone through a tragedy. Brooks agreed that he did not know if Person A had reached out directly to McGuckin.

On questioning by the Court, Brooks agreed that with regard to the Person B summons there were follow-up calls addressed to the issue of whether the summons was actually taken care of. Brooks agreed that in some cases there were such follow-up calls.

#### Respondent's Case

Respondent testified in his own behalf.

#### Respondent

Respondent is a 15-year member of the Department and has been assigned to the 40 Precinct his entire career. He has never before been the subject of disciplinary charges but has been the subject of a command discipline in the past. He was served with the charges on December 20, 2011.

Respondent admitted to being involved with the summons issued to Person B. Person B, he said, used to date his stepdaughter. He was a laborer with little money. Respondent said that for a time he allowed Person B to live with him. Respondent said that while looking for a job Person B got a parking ticket in Manhattan and was very upset because it was more than \$100 and he would have difficulty paying that fine. Respondent acknowledged calling McGuckin about that summons asking if he could help him out with it. Respondent had known McGuckin for 14 years.

Respondent is currently the RMP coordinator in his command, a job he has had for over three years. He last issued a summons himself about four years ago. Respondent acknowledged that with regard to the Person B summons he called McGuckin back to make sure it was taken care of.

Respondent testified that Person A is his stepson. He was together with Person A's mother for about 15 years, and they were married for seven years. Respondent said he helped raise Person A. He said that at some point Person A had moved back with his father for several years but then returned to live with Respondent. Person A's father has the same name.

Respondent testified that McGuckin knew his stepson. He explained that he and McGuckin are close and the families are close. They took vacations together and attended family parties. Respondent said that McGuckin knew his stepson directly from coming to his house and knows him personally.

Respondent testified that Person A's younger brother died in 2009 from an overdose. He said it was a difficult time for the family and Person A took it very badly. Respondent said he called McGuckin who came to the house with food and "everything



to help the family out.” McGuckin spent a lot of time with the family, drove them around looking for a funeral home and “took care of stuff.” Respondent said that McGuckin helped his stepchildren, talked to them and mentored them. He indicated that McGuckin maintained a relationship with Person A. He said that Person A directly communicated with McGuckin on occasion and that he had McGuckin’s business card and his telephone number.

Respondent was asked about his reaction at as his official Department interview when he was asked about Person A. Respondent replied:

Well I was actually shocked at first because I was thinking of my ex-wife’s ex-husband, they have the same name. And I couldn’t believe I couldn’t realize why that name would come up. I was really dumbfounded.

Respondent testified that he had absolutely no recollection of speaking to McGuckin regarding a summons that Person A had gotten. Reviewing all the evidence Respondent said he believed that Person A called McGuckin himself stating: I was pretty strict with the kids because God knows the mother wasn’t, so he probably went to him directly, didn’t want to tell me, he thought I’d yell at him or something. I would have had some recollection; I had nothing.

Respondent said he believed he would remember if he had reached out to McGuckin on a summons for Person A.

Respondent said he is still friends with McGuckin but did not discuss this matter with him because “he’s going through enough stuff.”

Respondent said he helped out with the Person B summons because he felt bad for him. He said he just wanted to help him out and that he had never done that before. Respondent denied ever reaching out on behalf of Person A.

On cross examination Respondent agreed that McGuckin has been at the 40 Precinct during the entire time he worked there. He also agreed that other delegates at the precinct in 2010 were Bencosme and Rodriguez. Respondent acknowledged that he and McGuckin were very good friends. Respondent agreed that when asked at the official Department interview if he had made requests regarding summonses in the last 18 months he had said that he did not recall. He also acknowledged that once he was asked about the Person B summons he admitted making a request on his behalf.

Respondent stated that he called McGuckin on that occasion to see what he could do. He said he had never done that before noting that his family lives upstate and doesn't come down to the city so he never "had to."

Respondent agreed that he had heard of taking care of a summons and knew that it meant making it go away.

When asked about the reference to Person A during the official Department interview, Respondent stated:

Yeah, I know the name, sure. He goes by [REDACTED] so when they said [REDACTED] you know, I immediately thought of the father and I couldn't realize why that name would be brought up.

Respondent acknowledged that when he was asked about his stepson he did not definitively say "no," he said that he did not recall.

### FINDINGS AND ANALYSIS

This case arose out of an investigation into allegations of summons "fixing" by members of this Department. A major tool of this investigation involved wiretaps of the telephones of various delegates who were central figures in the summons "fixing"



activity. These wiretaps obtained both verbal conversations and text messages involving the targeted phones.

With respect to this Respondent, it is alleged that on two occasions he arranged to have summonses issued to individuals he knew, dismissed. The first of these, chronologically, involved a summons issued to one Person A. Two conversations regarding this summons were intercepted by a wiretap: one on May 17, 2010, and the other on May 20, 2010.

The second of these summonses was issued to someone named Person B. Conversations regarding this summons were intercepted starting on June 22, 2010, and June 30, 2010.

Both summonses were ultimately “fixed” in that they were not adjudicated. Respondent has admitted to requesting that the summons issued to Person B be quashed. He denies any involvement with the summons issued to Person A.

The evidence presented to support the Department’s allegation regarding the Person A summons were the two recorded conversations. Both involved McGuckin who was the delegate from the 40 Precinct and Martin who was the delegate of the 44 Precinct. During the first of these conversations McGuckin mentioned that Person A is “an officer’s son” (Person A is the son of Respondent’s ex-wife). McGuckin did not mention Respondent’s name in the conversation nor did he assert that Respondent spoke to him or asked him to take care of this summons.

The second conversation was a follow-up indicating that the person needed to take care of the summons had been reached and that it would be taken care of. Respondent was not mentioned in that conversation.

Respondent was the subject of an official Department interview on November 23, 2011. During the interview Respondent at first denied recollection of fixing any summons. When asked specifically about the Person B summons he did recall and did admit to that. Respondent did not admit to asking anyone to "fix" the Person A summons.

There is no question that the existence of a relationship between Person A and Respondent created a suspicion that Respondent had contacted McGuckin which led to McGuckin calling Martin. Summoning Respondent in for an official Department interview and conducting an investigation was certainly warranted.

The Department has made something of a claim that Respondent made an admission during that official Department interview, but as will be seen, there was no admission. Whatever investigation may have occurred beyond that interview no additional evidence was provided beyond the two conversations previously mentioned. Thus, in the end, the Department had nothing more than the suspicion it started out with.

That the Department is relying on conjecture is made clear by some of the arguments it put forward in this case. The Department established through Brooks, an investigator on the case, that it is possible that conversations were not picked up on the wiretap during the investigation. This is simply an invitation to speculate that Respondent was engaged in conversations and to speculate as to what those conversations were about. Specifically the Department is asking this Court to find that Respondent spoke to McGuckin and asked him to "fix" the Person A summons. The Department is asking this Court to further speculate that those conversations were missed by the wiretap on McGuckin's phone.



Speculating about facts is bad enough but that speculation is at least to some extent contradicted by other facts.

In relation to the Person B summons the Department placed 12 communications (telephone calls and texts) in evidence. Three of these communications involved Respondent and McGuckin: two telephone conversations and one text message. Clearly Respondent and McGuckin used the telephone that was the subject of the wiretap. The Department is therefore asking the Court to speculate that somehow they did not use that phone to communicate on the Person A matter.

Then there is Respondent's testimony. Respondent testified that he and McGuckin had a social relationship outside of work. He indicated that as a result McGuckin knew his stepson, Person A, personally. Additionally McGuckin had a direct relationship with his stepson because of the death of Person A's brother when McGuckin came to the aid of the then grieving family. The death of Person A's brother was certainly mentioned by McGuckin in the first conversation between himself and Martin, when the initial request to "fix" the summons was made. Respondent suggested that Person A could have communicated directly with McGuckin about the summons he had gotten.

Absolutely no evidence was offered to refute this suggestion.

At best the Department has some circumstantial evidence that Respondent was involved in "fixing" this summons. The rule on circumstantial evidence is that it must exclude with some level of certainty other hypotheses consistent with innocence. Here Respondent's testimony opens up a very large and very real possibility that Respondent was not an intermediary between Person A and McGuckin. The Department offered no evidence to contradict that possibility.

There are other reasons to believe that Respondent in fact was not involved. The first of these is that Respondent admitted to the Person B summons when confronted with it but did not admit to the Person A summons even when pressured and led to believe there was a recording of a conversation involving him about it.

Indeed this brings us to another argument offered by the Advocate that needs to be addressed. This is the claim that somehow Respondent, during his official Department interview admitted to fixing this summons.

During her closing argument the Advocate noted that various questions were asked of Respondent which, she claims, form the basis for believing that Respondent made an admission. The questions she identified are: "Could you have made a request for Person A?" and "If you had made a request who would you reach out to?" and "Could this have taken place?" These questions are obviously speculative and by their very nature could not form a basis for an admission because even an affirmative answer only produces a possibility not a fact.

When these questions and answers are put in the context as they appear in the interview, the picture of the evidence that is being relied on by the Department is much more troubling.

At one point in the interview Respondent was asked to give his cell phone number. Shortly after Respondent provided that number he was told that a particular call was made on May 17, 2010 to McGuckin in regard to "removing" the Person A summons. Respondent was further told, "You called him...you reached out for a little assistance." He was then asked, "Could this call have taken place, did this call take place?"



Respondent, who was aware that there were wiretapped conversations, really did not have a choice at this point but to answer in the affirmative, because a denial might be deemed a lie. Respondent, as all officers who are subject to such interviews, was told that a false answer could result in his losing his position as a police officer. Even so Respondent did not actually admit to making such a phone call he merely said, "I guess so," (again, not an affirmation but a speculation). Respondent then went directly on to question the date of birth of Person A because he had noted that his former stepson and that young man's father have the same name. He also noted that the stepson was referred to as '████' and Respondent seemed genuinely surprised that if the son and not the father was being referred to that the nickname had not been used. In the end Respondent denied recalling any communication with McGuckin about Person A.

While the answers Respondent gave could hardly be considered admissions the manner in which he answered the question provide some reason to believe that Respondent was being truthful when he denied recollection of any request he might have made on behalf of his former stepson.

As has been noted, Respondent initially denied any recollection of making calls on summonses generally, however, as soon as he was asked specifically about the Person B summons he acknowledged, without reservation, his role in that matter. With regard to the claim that he made a call on behalf of Person A, Respondent hedged and seemed genuinely confused.

In any event, it is the Department that has the burden of proof. The complete absence of legally cognizable evidence that Respondent reached out to McGuckin or

anyone on this matter, makes clear that Respondent cannot be found guilty of the claim that he had anything to do with "fixing" the Person A summons.

Respondent also argues that the charges were served beyond the statute of limitations with regard to the Person A matter. Respondent notes that the last conversation in the Person A matter was on May 20, 2010. The official Department interview occurred on November 23, 2011, which itself was a few days beyond the 18 month period. The charges were served on December 20, 2011, 19 months to the day after that last telephone call. The Department has argued that the statute does not apply as there is a continuing course of conduct.

It is unnecessary to fully discuss the merits of this argument as the first alleged act of this claimed course of conduct has not been proven to have occurred.

The specification in this case charges that Respondent "on two (2) occasions did request the assistance of other members of the service to prevent the processing and adjudication of two (2) summonses issued to two (2) individuals." Respondent has admitted to one event and the Department has failed to prove the other. Consequently Respondent is found Guilty in part of this specification.

#### PENALTY

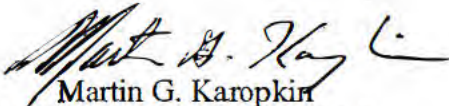
In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on August 31, 1998. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

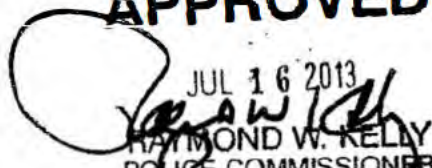


As has been mentioned this case is part of a large investigation. Many officers have been brought up on similar charges. I am advised that where an officer has been accused of preventing the adjudication of one summons the matter is handled at the command level.

This Court has no authority to return a matter for Command Discipline and can only make a recommendation in accordance with the Administrative Code. Consequently, based on the seriousness of any amount of summons "fixing," the recommendation in this case is the loss of ten vacation days, a penalty consistent with the maximum that can be imposed with a Command Discipline.

Respectfully submitted,

  
Martin G. Karopkin  
Deputy Commissioner – Trials

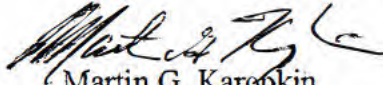
**APPROVED**  
  
JUL 16 2013  
RAYMOND W. KELLY  
POLICE COMMISSIONER

POLICE DEPARTMENT  
CITY OF NEW YORK

From: Deputy Commissioner Trials  
To: Police Commissioner  
Subject: CONFIDENTIAL MEMORANDUM  
POLICE OFFICER MARK CALANDRA  
TAX REGISTRY NO. 922051  
DISCIPLINARY CASE NO. 2011-6384

Respondent received an overall rating of 4.0 "Highly Competent" on his last three annual performance evaluations. [REDACTED]  
Respondent has no prior formal disciplinary record.

For your consideration.

  
Martin G. Karopkin  
Deputy Commissioner Trials